

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 16, 2018

Honorable John M. Toberlin
Judge of the Superior Court
County of San Bernardino
14455 Civic Drive
Victorville, CA 92392

Re: Gray, Raymond Alan
CDC No.: AW4498
Case No.: FVI1400084
Date of Sentence: April 3, 2015

Dear Honorable John M. Toberlin:

The purpose of this letter is to provide the court with authority to resentence Raymond Alan Gray pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Gray was sentenced in 2015, and was convicted of section 245, subdivision (A)(2) Assault With Firearm Felon/Addict/ETC Possess. The trial court sentenced inmate Gray on April 3, 2015. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Gray's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Gray's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
First Amended Felony Information

cc: Honorable John P. Vander Feer, San Bernardino County Presiding Judge
San Bernardino District Attorney
Public Defender

AW4498

AW 4498 1312071130

HD

(B)

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: San Bernardino		FVI1400084		-A	
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: RAYMOND ALAN GRAY		DOB: 07-07-89		-B	
AKA:				-C	
CII NO: A24920564		☐ NOT PRESENT		-D	
BOOKING NO:		☐ AMENDED ABSTRACT			
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT					
DATE OF HEARING 04-03-15		DEPT. NO. V2		JUDGE JOHN M TOBERLIN	
CLERK JESSICA RAMIREZ		REPORTER GLENORA MELENDEZ		PROBATION NO. OR PROBATION OFFICER ☒ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE LLOYD MASSON		COUNSEL FOR DEFENDANT CDP JAMES TERRELL		☐ APPTD.	

FILED
 SUPERIOR COURT OF CALIFORNIA
 COUNTY OF SAN BERNARDINO
 VICTORVILLE DISTRICT
APR 06 2015
 LIZET FLORES, DEPUTY

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
 (number of pages attached)

☐ Additional counts are listed on attachment
 ____ (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (Refer to item 2)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED		
						JURY	COURT	PLEA								YRS.	MOS.	
2	PC	245(A)(2) PC	ASSAULT WITH FIREARM	2013	12-19-14	X			U	Principal							4	
3	PC	29800(A)	FELON/ADDICT/ETC POSSESS	2013	12-19-14	X			M						X			

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
1	12022.7(A)	3	12022.5(A)/(D)	10	186.22(B)(1)(B)	5	
3	186.22(B)(1)(A)	S					

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
667.5(B)	1					

4. ☐ Defendant sentenced per: PC 667 (b)-(i) or PC 1170.12 (two-strikes).

☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed (Paper Commitment). Deft. ordered to report to local Parole Office upon release.

5. INCOMPLETE SENTENCE(S) CONSECUTIVE

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 23

COUNTY	CASE NUMBER

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

Page 1 of 2

PEOPLE OF THE STATE OF CALIFORNIA vs.
DEFENDANT RAYMOND ALAN GRAY

FVI1400084

-A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$ 10000.00 per PC 1202.4(b) forthwith per PC 2085.5; \$ 10000.00 per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked. TO BE COLLECTED BY DOC
Case B: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.
Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.
Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
\$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund VICTIM COMPENSATION BOARD PAYABLE TO DOC
Case A: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case C: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case D: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ * Victim name(s) if known and amount breakdown in item 11, below. ☐ *Victim name(s) in probation officer's report.

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$246 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.
Case B: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.
Case C: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.
Case D: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

d. Court Security Fee: \$ per PC 1465.8.

e. Criminal Conviction Assessment: \$ per GC 70373.

10. TESTING: a. ☒ Compliance with PC 296 b. ☐ AIDS per PC 1202.1 c. ☐ other (specify):

11. Other orders (specify):

CONSTRUCTION AND COURT OPERATIONS FEE OF \$70 PER CONVICTION FOR COUNTS 2 3 PAYABLE TO THE DOC

12. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit Defendant's race/national origin:

13. EXECUTION OF SENTENCE IMPOSED

- a. ☒ at initial sentencing hearing.
b. ☐ at resentencing per decision on appeal.
c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
e. ☐ other (specify):

14. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	530	461	69 ☐ 4019 ☒ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentence Pronounced: 04-03-15		Time Served in State Institution: DMH CDC CRC [] [] []	

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☐ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☒ other (specify): CHINO

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE



ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE